

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement") is made as of [EFFECTIVE DATE] between:

- **Disclosing Party:** Charioteer Consulting Ltd, of 86-90 Paul Street, London EC2A 4NE, United Kingdom, acting by Parthasarathy Ramanujam ("Discloser"); and
- **Receiving Party:** [RECIPIENT FULL LEGAL NAME], of [ADDRESS] ("Recipient").

1. Purpose

The Parties wish to explore a potential working relationship or collaboration concerning Discloser's confidential project known by the working name "Loom" (the "Purpose"). In connection with the Purpose, Discloser may disclose confidential information to Recipient, including a technical whitepaper and related materials.

2. Definition of Confidential Information

"Confidential Information" means all non-public information disclosed by Discloser to Recipient, in any form, whether or not marked confidential, including without limitation: the Loom whitepaper, specifications, architecture, designs, source code, algorithms, protocols, data, business and technical plans, roadmaps, and any ideas, concepts, or know-how contained in or derived from the foregoing, together with all notes and derivative materials Recipient prepares that contain or are based on such information.

3. Exclusions

Confidential Information does not include information that Recipient can demonstrate by written records: (a) was lawfully in Recipient's possession without a duty of confidence before disclosure by Discloser; (b) is or becomes public through no act or omission of Recipient; (c) is lawfully received from a third party without a duty of confidence; or (d) is independently developed by Recipient without any use of or reference to the Confidential Information.

4. Obligations of Recipient

Recipient shall: (a) hold the Confidential Information in strict confidence, using at least a reasonable degree of care; (b) use the Confidential Information solely for the Purpose; (c) not disclose it to any third party without Discloser's prior written consent; (d) not copy it except as reasonably necessary for the Purpose; and (e) promptly notify Discloser of any unauthorized use or disclosure.

5. No Use Outside the Purpose

Recipient shall not use the Confidential Information, in whole or in part, for any purpose other than the Purpose, or for the benefit of Recipient or any third party.

6. Restricted Activities (18 months)

For a period of eighteen (18) months following the Effective Date, Recipient shall not, directly or indirectly, design, develop, build, fund, advise on, or assist any product, project, or venture that is derived from, based on, incorporates, or is substantially informed by the Confidential Information.

The Parties agree that this restriction is reasonable and necessary to protect Discloser's legitimate interest in its Confidential Information and trade secrets, and is no wider than necessary for that purpose. This Section does not restrict Recipient from independently developing or working on any product, project, or venture without any use of or reference to the Confidential Information

(Section 3(d)). Recipient bears the burden of demonstrating such independent development by contemporaneous written records.

7. No License or Rights Granted

All Confidential Information remains the property of Discloser. No licence or other intellectual-property right is granted to Recipient, except the limited right to use the Confidential Information for the Purpose.

8. Return or Destruction

Upon Discloser's written request or the end of discussions, Recipient shall promptly return or destroy all Confidential Information and derivative materials and certify destruction in writing, save one archival copy retained solely to meet legal or regulatory obligations.

9. Term and Survival

This Agreement takes effect on the Effective Date and continues for [TERM, e.g. two (2) years]. Recipient's confidentiality obligations survive for [SURVIVAL, e.g. three (3) years] after disclosure, and, for any trade secret, for as long as the information remains confidential. Section 6 applies for the eighteen (18) month period stated therein.

10. No Obligation

Nothing here obligates either Party to proceed with any transaction or to disclose any particular information.

11. Remedies

Recipient acknowledges that unauthorized use or disclosure may cause irreparable harm for which damages are an inadequate remedy, and that Discloser is entitled to seek injunctive relief, including interim and "springboard" injunctions to prevent Recipient gaining an unfair head start from misuse of the Confidential Information, in addition to any other remedy available in law or equity.

12. No Warranty

The Confidential Information is provided "as is," with no warranty as to accuracy or completeness.

13. Governing Law and Jurisdiction

(a) This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes) are governed by the laws of England and Wales.

(b) The Recipient irrevocably submits to the exclusive jurisdiction of the courts of England and Wales, and this applies regardless of the Recipient's nationality, domicile, residence, or place of incorporation. The Recipient waives any objection to those courts on the grounds of inconvenient forum or otherwise.

(c) If the Recipient is located outside England and Wales, the Recipient shall, on the Discloser's request, appoint an agent for service of process in England and Wales and notify the Discloser of the agent's details. Failing such appointment, the Recipient agrees that process may be served on it by courier or email to the address or email stated for the Recipient in this Agreement, and such service shall be deemed effective.

(d) The Recipient expressly agrees and acknowledges that the laws of England and Wales are the governing law of this Agreement and of the resolution of any dispute, claim, or difference arising

out of or in connection with it, that any such dispute shall be resolved exclusively before the courts of England and Wales, and that the Recipient enters into this Agreement on that basis and with that understanding.

14. Miscellaneous

(a) Entire agreement on its subject matter; supersedes prior discussions. (b) Amendments must be in writing and signed by both Parties. (c) Severability: if any provision (or part, applying the blue-pencil approach) is unenforceable, it is severed and the remainder continues in effect. (d) No waiver by failure to enforce. (e) No assignment by Recipient without Discloser's written consent. (f) Third parties: save as expressly stated, no term is enforceable under the Contracts (Rights of Third Parties) Act 1999. (g) Counterparts, including electronic signatures, each an original.

DISCLOSER (for and on behalf of Charioteer Consulting Ltd) Signature: _____

Name: Parthasarathy Ramanujam Title: Director Date: _____

RECIPIENT Signature: _____ Name: [RECIPIENT NAME] Date: _____